

HEADNOTE

“The rule under art. 262.1 (ROP) requires that the request be made by a third party , private or public , distinct from the parties to the proceedings. A lawyer who declares himself to be the representative of the defendant, claiming to have only a mandate for litigation in order to access the case file but not to appear in court, and who requests access to the file before service of the summons is perfected in order to know the documents in advance, is not a third party.”

COURT
Local Division in Milan

PATENT
EP2145848

KEYWORDS

Rule 262 1.(B) R.o.P. request (rejected): P...

PROCEEDINGS
Procedural order

False twist texturing machine

Rule 262 Public access to the register

SUMMARY

The Local Division in Milan issued a procedural order. According to the headnotes of the decision, Article 262.1 of the Rules of Procedure requires that a request for file access be made by a third party who is independent from the parties already involved in the case. A lawyer who represents one of the parties in litigation and seeks early access to case documents before formal service of the summons is completed cannot qualify as such a third party.